

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0009804-2021

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Jose Herrera

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CASE INFORMATION

<u>Judge Assigned:</u> Eisenhower, James	<u>Date Filed:</u> 12/03/2021	<u>Initiation Date:</u> 12/03/2021
<u>OTN:</u> U 233618-0	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0012975-2021
<u>Initial Issuing Authority:</u> Charles Hayden	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Johnson, Mark W.	
<u>Complaint/Citation No.:</u> 2124028961-0012975	<u>Incident Number:</u> 2124028961	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0012975-2021	
District Control Number	2124028961	
Originating Document Number	2124028961-0012975	

STATUS INFORMATION

<u>Case Status:</u> Active	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u> 07/09/2021
	10/01/2025	Awaiting Trial Readiness Conference	
	06/27/2025	Awaiting Trial Readiness Conference	
	06/03/2025	Awaiting Trial Readiness Conference	
	05/28/2025	Awaiting Trial	
	03/07/2025	Awaiting Trial Readiness Conference	
	03/07/2025	Awaiting Trial Readiness Conference	
	02/13/2025	Awaiting Scheduling Conference	
	01/21/2025	Awaiting Trial Readiness Conference	
	01/21/2022	Awaiting Trial Readiness Conference	
	12/13/2021	Awaiting Scheduling Conference	
	12/03/2021	Awaiting Filing of Information	

Complaint Date: 07/10/2021

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	12/17/2021	11:00 am	1104	Trial Commissioner Lisa McNevin	Scheduled
Scheduling Conference	01/07/2022	9:00 am	1108	Judge Diana L. Anhalt	Continued
Scheduling Conference	01/21/2022	9:00 am	807	Judge Diana L. Anhalt	Scheduled
Trial Readiness Conference	03/18/2022	9:00 am	807	Judge Diana L. Anhalt	Scheduled
Status	09/16/2022	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	12/19/2022	9:00 am	807	Judge Diana L. Anhalt	Moved
Status	03/30/2023	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	07/06/2023	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	09/07/2023	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	11/30/2023	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	01/18/2024	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	04/04/2024	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	05/10/2024	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	06/25/2024	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	07/12/2024	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	08/20/2024	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	10/07/2024	9:00 am	807	Judge Diana L. Anhalt	Continued
Status	10/31/2024	9:00 am	507	Judge Barbara A. McDermott	Continued
Status	11/27/2024	9:00 am	507	Judge Barbara A. McDermott	Continued
Status	01/09/2025	9:00 am	507	Judge Barbara A. McDermott	Scheduled
Trial Readiness Conference	01/21/2025	9:00 am	607	Judge Charles A. Ehrlich	Continued
Trial Readiness Conference	02/06/2025	9:00 am	607	Judge Charles A. Ehrlich	Continued
Trial Readiness Conference	02/13/2025	9:00 am	607	Judge Charles A. Ehrlich	Scheduled
Scheduling Conference	02/18/2025	9:00 am	907	Judge J. Scott O'Keefe	Scheduled
Scheduling Conference	03/06/2025	9:00 am	701	Judge Tamika Washington	Continued
Scheduling Conference	03/07/2025	9:00 am	701	Judge Tamika Washington	Scheduled
Trial Readiness Conference	03/28/2025	9:00 am	701	Judge Tamika Washington	Continued

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Trial Readiness Conference	05/28/2025	9:00 am	701	Judge Tamika Washington	Scheduled
Jury Trial	06/03/2025	9:00 am	701	Judge Tamika Washington	Scheduled
Trial Readiness Conference	10/01/2025	9:00 am	701	Judge James Eisenhower	Continued
Trial Readiness Conference	10/01/2025	9:00 am	701	Judge Tamika Washington	Moved
Trial Readiness Conference	10/02/2025	9:00 am	701	Judge James Eisenhower	Scheduled
Jury Trial	10/06/2025	9:00 am	701	Judge Tamika Washington	Moved
Jury Trial	10/06/2025	9:00 am	701	Judge James Eisenhower	Moved
Jury Trial	10/07/2025	9:00 am	701	Judge James Eisenhower	Scheduled
Motions Hearing	10/20/2025	9:00 am	701	Judge James Eisenhower	Continued
Jury Trial	11/17/2025	9:00 am	607	Judge Charles A. Ehrlich	Cancelled
Motions Hearing	11/24/2025	9:00 am	607	Judge Charles A. Ehrlich	Scheduled
Motions Hearing	12/10/2025	9:00 am	701	Judge James Eisenhower	Scheduled
Status	01/09/2026	9:00 am	701	Judge James Eisenhower	Continued
Status	04/24/2026	9:00 am	701	Judge James Eisenhower	Continued
Status	06/05/2026	9:00 am	701	Judge James Eisenhower	Scheduled

CONFINEMENT INFORMATION

<u>Confinement</u>	<u>Confinement</u>	<u>Destination</u>	<u>Confinement</u>	<u>Still in</u>
<u>Known As Of</u>	<u>Type</u>	<u>Location</u>	<u>Reason</u>	<u>Custody</u>
07/11/2021	County Correctional Facility	Curran-Fromhold Correctional Facil		Yes

DEFENDANT INFORMATION

Date Of Birth: 09/10/1991 City/State/Zip: York, PA 17401

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	Herrera, Jose

BAIL INFORMATION

Herrera, Jose

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	07/10/2021	Monetary	Municipal Court	10.00%	\$450,000.00
Decrease Bail Amount	12/03/2021	Monetary	Municipal Court	10.00%	\$250,000.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
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CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
1	2		18 § 2702	Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	05/05/2021	U 233618-0
2	3		18 § 6105	Possession Of Firearm Prohibited	05/05/2021	U 233618-0
3	5		18 § 6108	Carry Firearms Public In Phila	05/05/2021	U 233618-0
4	6		18 § 907	Poss Instrument Of Crime W/Int	05/05/2021	U 233618-0
5	7		18 § 2706	Terroristic Threats W/ Int To Terrorize Another	05/05/2021	U 233618-0
6	8		18 § 2701	Simple Assault	05/05/2021	U 233618-0
7	9		18 § 2705	Recklessly Endangering Another Person	05/05/2021	U 233618-0
99,999	1		18 § 901	Criminal Attempt - Murder	05/05/2021	U 233618-0
99,999	4		18 § 6106	Firearms Not To Be Carried W/O License	05/05/2021	U 233618-0

DISPOSITION SENTENCING/PENALTIES

Disposition

Case Event

Sequence/Description

Sentencing Judge

Sentence/Diversion Program Type

Sentence Conditions

Disposition Date

Offense Disposition

Sentence Date

Incarceration/Diversionary Period

Final Disposition

Grade Section

Credit For Time Served

Start Date

Lower Court Proceeding (generic)

Preliminary Hearing	12/03/2021	Not Final
1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Held for Court	18 § 2702
2 / Possession Of Firearm Prohibited	Held for Court	18 § 6105
3 / Carry Firearms Public In Phila	Held for Court	18 § 6108
4 / Poss Instrument Of Crime W/Int	Held for Court	18 § 907
5 / Terroristic Threats W/ Int To Terrorize Another	Held for Court	18 § 2706
6 / Simple Assault	Held for Court	18 § 2701
7 / Recklessly Endangering Another Person	Held for Court	18 § 2705
99,999 / Criminal Attempt - Murder	Dismissed - LOE	18 § 901
99,999 / Firearms Not To Be Carried W/O License	Dismissed - LOE	18 § 6106

Proceed to Court

Defendant Was Not Present

Information Filed	12/08/2021	Not Final
1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Proceed to Court	18 § 2702
2 / Possession Of Firearm Prohibited	Proceed to Court	18 § 6105
3 / Carry Firearms Public In Phila	Proceed to Court	18 § 6108
4 / Poss Instrument Of Crime W/Int	Proceed to Court	18 § 907

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DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		
5 / Terroristic Threats W/ Int To Terrorize Another	Proceed to Court	18 § 2706
6 / Simple Assault	Proceed to Court	18 § 2701
7 / Recklessly Endangering Another Person	Proceed to Court	18 § 2705
99,999 / Criminal Attempt - Murder	Disposed at Lower Court	18 § 901
99,999 / Firearms Not To Be Carried W/O License	Disposed at Lower Court	18 § 6106

COMMONWEALTH INFORMATION

Name: Philadelphia County District Attorney's
Office
Prosecutor

Supreme Court No:

Phone Number(s):
215-686-8000 (Phone)

Address:
3 South Penn Square
Philadelphia, PA 19107

ATTORNEY INFORMATION

Name: Defender Association of
Philadelphia
Public Defender

Supreme Court No:

Rep. Status: Active

Phone Number(s):

Address:

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	12/03/2021		Court of Common Pleas - Philadelphia County
Held for Court			
1	12/08/2021		Krasner, Larry
Information Filed			
1	01/21/2022		Anhalt, Diana L.
Scheduling Conference Held			
3	03/18/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	03/18/2022		Anhalt, Diana L.
Status Listing			

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1	09/16/2022		Anhalt, Diana L.
Status Listing			
5	09/16/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	12/19/2022		Anhalt, Diana L.
Status Listing			
4	03/30/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	03/30/2023		Anhalt, Diana L.
Status Listing			
4	07/06/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	07/06/2023		Anhalt, Diana L.
Status Listing			
Commonwealth of Pennsylvania			
07/06/2023			
Defender Association of Philadelphia			
07/06/2023			
1	09/07/2023		Anhalt, Diana L.
Status Listing			
5	09/07/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	11/30/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	11/30/2023		Anhalt, Diana L.
Status Listing			

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1	01/18/2024		Anhalt, Diana L.
Defense Request For Continuance For Further Investigation			
5	01/18/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	04/04/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	04/04/2024		Anhalt, Diana L.
Status Listing			
4	04/18/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	06/25/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	07/12/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	07/12/2024		Anhalt, Diana L.
Status Listing			
4	08/20/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	08/20/2024		Anhalt, Diana L.
Status Listing			
4	10/07/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			

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5	10/07/2024		Anhalt, Diana L.
Status Listing			
4	10/31/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	10/31/2024		McDermott, Barbara A.
Status Listing			
4	11/27/2024		McDermott, Barbara A.
Status Listing			
5	11/27/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	01/09/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	01/09/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
7	01/09/2025		McDermott, Barbara A.
Defense Request For Continuance For Status of Trial			
4	01/21/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	01/21/2025		Ehrlich, Charles A.
Commonwealth Request For Continuance Will Not Sever Case			
4	02/07/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	02/13/2025		Ehrlich, Charles A.
Order Granting Motion for Continuance			

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4	02/13/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	02/18/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	02/18/2025		O'Keefe, J. Scott
Order Granting Motion for Continuance			
4	03/06/2025		Washington, Tamika
Court Request For Continuance Court is on Trial			
1	03/07/2025		Washington, Tamika
Scheduling Conference Held			
1	05/27/2025		Defender Association of Philadelphia
Motion to Dismiss			
1	05/28/2025		Washington, Tamika
Trial Date to Remain			
1	05/29/2025		Defender Association of Philadelphia
Motion in Limine			
1	06/02/2025		Philadelphia County District Attorney's Office
Answer/Response			
1	06/03/2025		Washington, Tamika
Order Denying Motion to Dismiss			
2	06/03/2025		Washington, Tamika
Commonwealth Request For Continuance Victim/Witness Failed to Appear			
3	06/03/2025		Washington, Tamika
Order Denying Motion in Limine			

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3	06/27/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	06/27/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	10/01/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	10/01/2025		Eisenhower, James
Court Request For Continuance Court is on Trial			
1	10/02/2025		Eisenhower, James
Court Request For Continuance Court is on Trial			
4	10/02/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	10/06/2025		Philadelphia County District Attorney's Office
Miscellaneous Motion Filed			
3	10/07/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	10/07/2025		Eisenhower, James
Court Request For Continuance Court is on Trial			
1	10/20/2025		Eisenhower, James
Court Request For Continuance Defendant Not Brought Down From County Custody			
1	11/24/2025		Ehrlich, Charles A.
Case Listed in Error			
1	12/10/2025		Defender Association of Philadelphia
Answer/Response			

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2	12/10/2025		Eisenhower, James
Court Request For Continuance Case Held Under Advisement			
1	12/12/2025		Eisenhower, James
Order Granting Motion to Admit Evidence			
4	01/09/2026		Lightsey, Chesley
Defense Request For Continuance For Further Investigation			
1	04/24/2026		Eisenhower, James
Status Listing			
5	04/24/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			